

6.	30-2023-01357282 Merino vs. Pacific Coast Patrol, Inc	1. Motion-Other 2. Motion to Compel Deposition (Oral or Written) 3. Motion to Enforce Court Order <u>Motion to Compel Deposition of Defendant’s Person Most Qualified</u> Plaintiff, Steven Merino (“Plaintiff”), moves for an order compelling the Person(s) Most Qualified (“PMQ”) for Defendant, Pacific Coast Patrol, Inc. to appear and testify and to produce documents specified in the Third Amended Notice of Deposition, as well as an order awarding sanctions in the amount of \$3,060 against Defendant and its attorneys, Knapp, Petersen & Clarke, including handling attorneys Stephen C. Pasarow, Esq., Kevin J. Slack, Esq. and Asante T. Nkosi, Esq. A motion to compel under Code of Civil Procedure section 2025.450(a) must “be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (Code Civ. Proc. § 2025.450(b).) The meet and confer declaration “shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. § 2016.040.) There must be a “serious effort at negotiation and informal resolution” and “the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (<i>Townsend v. Superior Court</i> (1998) 61 Cal.App.4th 1431, 1438.) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue.” (<i>Leko v. Cornerstone Building Inspection Service</i> (2001) 86 Cal.App.4th 1109, 1124.) Here, at issue is the Third Amended Notice of Deposition and Request for Production of Documents for the Person(s) Most Qualified for Defendant, Pacific Coast Patrol, Inc. (“Defendant”), which was served by Plaintiff on Defendant on November 17, 2025, with a deposition date of December 12, 2025. (Declaration of Erik Fritz (“Fritz Decl.”), ¶ 12, Ex. G.) In response, Defendant served an objection on December 9, 2025, indicating that the date was unilaterally noticed and was not convenient for the Defendant and Defendant’s counsel, and that they would coordinate a convenient date with Plaintiff’s counsel, as well as asserted objections to the 43 document requests. (Ex. H to Fritz Decl.) Additionally, on December 11, 2025, Defendant’s counsel from Knapp, Petersen & Clarke sent an email to Plaintiff’s counsel’s informing them that Pacific Coast Patrol’s PMQ was undergoing medical treatment and is ill, is unavailable on December 12, and that the best estimate is that the deponent will not be available through December. (Declaration of Kevin J. Stack, ¶ 6, Ex. A.) There appears to have been no response to this email, and on December 12, 2025, Plaintiff took a certificate of non-appearance on December 12, 2025. (Fritz Decl., ¶ 14, Ex. I.) Plaintiff then filed the instant motion on December 18, 2025. In addition, the prior deposition notices involved prior counsel for Defendant, namely, Christopher C. Mosier, Esq. at James T. Shott & Associates. (See Exs. B, C, D, and F to Fritz Decl.) The subject Third Amended Notice of Deposition and Request for Production of Documents is the first deposition notice involving Defendant’s new counsel from Knapp, Petersen & Clarke. (Ex. H to Fritz Decl.) Based on the foregoing, this is not simply a situation where the deponent failed to attend the deposition and produce the documents described in the deposition notice.
----	---	--

The foregoing circumstances do not support reasonable and good faith efforts to resolve either the scheduling of the deposition or the document requests. Significantly, it does not appear that counsel for the parties ever discussed the objections concerning the 43 document requests. Consequently, as detailed below, Plaintiff's **motion to compel is CONTINUED to August 30, 2026 at 1:30 p.m. in Department C34.**

The parties are ORDERED to meet and confer with regards to the issues raised in the motion to compel deposition and to file a Joint Statement, as set forth below.

The parties shall make reasonable and good faith attempts at informal resolution of the issues raised in the motion, including each of the 43 document requests. Meet and confer efforts shall be made *by telephone or videoconference*, not by mail or email, except as confirmation of conversations, **within 14 days.**

The parties shall file a Joint Statement only on issues on which they cannot reach resolution through meeting and conferring. *The Joint Statement shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each issue and/or document request that remains in dispute, and (3) briefly state why the parties were unable to resolve the dispute.*

The Joint Statement must be filed and served no later than nine (9) court days before the continued hearing date. *If a Joint Statement is not filed by that date, the Motion will be placed off-calendar.*

In addition, Plaintiff's Separate Statement does not set forth the objections/response made by Defendant to the subject Third Amended Notice of Deposition and Request for Production of Documents. (See Ex. H to Fritz Decl.) Instead, it appears to address the objections/response made by Defendant to the original deposition notice. (See Ex. B to Fritz Decl.)

If applicable, **Plaintiff is ORDERED to file and serve an amended separate statement that includes the objections/response to the at issue Third Amended Notice of Deposition and Request for Production of Documents for any document requests that remain at issue.**

No additional briefing is authorized or will be considered.

Motion to Enforce Court Order

Plaintiff, Steven Merino, moves for an order enforcing the Court's order against Defendants, Pacific Coast Patrol, Inc. and Ignacio Martinez ("Defendant") dated October 2, 2025.

Code of Civil Procedure section 2023.030 provides that the court may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: money sanction, issue sanction, evidence sanction, terminating sanction, or contempt sanction. (Code Civ. Proc. § 2023.030(a)-(e).) A misuse of the discovery process includes disobeying a court order to provide discovery. (Code Civ. Proc. § 2023.010(g).)

Plaintiff generally asserts that the Court should impose appropriate sanctions against Defendants for the misuse of the discovery process.

The Court's October 2, 2025 Minute Order concerned Defendants, Ignacio Martinez and Pacific Coast Patrol, Inc.'s ("Defendants") motion to quash the deposition subpoena for production of business records served on non-party State Farm Mutual Automobile Insurance Company ("State

Farm”). (ROA 131, Ex. A to Declaration of Erik Fritz (“Fritz Decl.”).) The Court ordered, in relevant part, the following:

However, given the nature of the documents requested, the Court has concerns that private or confidential information and/or documents of Defendants or third parties may be responsive to Request Nos. 2-5. **Accordingly, the Court ORDERS the parties to prepare and submit a Stipulation and Protective Order covering the production and dissemination of private and/or confidential information. Said Stipulation and Protective Order to be submitted to the Court for approval within 14 days.**

[¶¶.]

State Farm to produce responsive, *non-privileged* documents to Request Nos. 2-5, **within 30 days of the Court's approval of the parties' Stipulation and Protective Order** governing the disclosure of private and confidential information, **with a privilege log, as applicable**. In light of Defendants’ assertion of the attorney-client privilege and the (attorney) work product doctrine and to ensure all privilege assertions are included, **the Court orders State Farm to serve its production and any privilege log upon Defendants' counsel first.**

(Ex. A to Fritz Decl., at pp. 5-6.)

It appears that the parties’ Stipulation and Protective Order (“Stipulation”) has yet to be approved as the parties disagreed about the necessity of submitted a signed version of the Stipulation in a Word document, that Plaintiff signed a PDF version of the Stipulation, and that Defendants appeared to have submitted a version of the stipulation to the Court with Defendants’ counsels’ signature only which was rejected. (Fritz Decl., ¶¶ 13-15, Exs. B and C; ROA 208, Declaration of Kevin J. Stack (“Stack Decl.”), ¶ 7, Exs. B-C.)

Defendants contend that Plaintiff’s counsel refused, and continues to refuse, to sign a Word version of the Stipulation as required by the Orange County Superior Court, but fails to cite to the rule upon which Defendants rely, and cites to no authority supporting that a stipulation needs to be signed in Word format.

It appears that the Stipulation that was submitted on October 17, 2025, only contained the signature of Defendants’ counsel despite the fact that Plaintiff’s counsel had signed a PDF version of the Stipulation, and that the Stipulation was rejected, noting “Please resubmit with signatures of Plaintiff(s) and Defendant(s).” (Ex. C to Fritz Decl.) Despite this, it appears that neither Defendants nor Plaintiff attempted to resubmit the Stipulation.

Ultimately, the Court’s October 2, 2025 Minute Order did not order Defendants to submit the proposed order, and they attempted to do so, but counsel for the parties disputed the need to submit a signed version of the Stipulation in Word format. As such, it does not appear that Defendants misused the discovery process by failing to comply with the Court’s order. Based on the foregoing, the Court DENIES the motion to enforce as against Defendants. Nevertheless, the Court again **ORDERS the parties to submit a Stipulation and Protective Order and Proposed Order covering the production and dissemination of private and/or confidential information within 14 days** so that the ordered production may be effectuated.

To the extent that Plaintiff seeks monetary sanctions, sanctions are denied given the Court’s ruling. Additionally, Plaintiff has not specified the sanctions sought as required by Code of Civil Procedure section 2023.040.

Motion to Enforce Subpoena

Plaintiff, Steven Merino (“Plaintiff”), moves for an order enforcing the subpoena issued to Uber Technologies, Inc. (“Uber”) on September 9, 2025, issuing evidence and issue sanctions against Uber for failure to comply with the subpoena, and awarding monetary sanctions in the amount of \$2,060 against Uber.

“A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.” (California Rules of Court, rule 3.1346.)

Here, the proofs of service attached to the moving papers indicates that the moving papers were electronically served on Uber through counsel, Vanessa K. Herzog and Taylor A. Stewart of Wood Smith Henning & Berman LLP. The moving papers were not personally served on Uber and there is no evidence showing that Uber agreed to accept service by electronic service through said counsel.

In light of the above, and the lack of opposition, Plaintiff’s motion to enforce/compel its Deposition Subpoena for Production of Business Records is **CONTINUED to August 30, 2026 at 1:30 p.m. in Department C34.**

Plaintiff is **ORDERED** to *serve the moving papers by personal service on Uber, or otherwise file and serve supplemental evidence showing that Uber agreed to accept service by electronic service through counsel listed in the proofs of service.* Plaintiff to file said proof of service or supplemental evidence, as applicable, no later than nine (9) courts days before the continued hearing date.

The Court orders Plaintiff to give notice of all motions.

7. 30-2023-01366366

**Gregg vs. Swift
Transportation Co. of
AZ LLC**

1. Motion for Summary Judgment and/or Adjudication

Defendants Swift Transportation Co. of Arizona, LLC and Doug Witt (“Defendants”) move for Summary Judgement and/or Adjudication. Plaintiff James Vincent Gregg II (“Plaintiff”) opposes the motion.

First, the moving papers establish that Defendant did not move for summary judgment as to the fourth cause of action for failure to indemnify/reimburse. The fourth cause of action is not addressed in the notice of motion or the separate statement. (Cal. Rule of Court, rule 3.1350, subd. (d).) Therefore, it has not been properly noticed or addressed and the **Court will not make a determination on this cause of action.**

Second, Plaintiff concedes that the second cause of action for failure to provide overtime compensation, third cause of action for failure to provide rest breaks, fifth cause of action for waiting time penalties, and sixth cause of action for failure to provide accurate itemized wage statements are *preempted*. As such, the motion for summary adjudication is **GRANTED as to these causes of action.**